

1 ENGROSSED HOUSE
2 BILL NO. 4153

By: Hasenbeck and Wolfley of
the House

3 and

4 Pugh of the Senate
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6

7 An Act relating to driver licenses; creating a
8 requirement to demonstrate an eighth grade reading
9 level for minors to obtain a driver license;
10 establishing criteria for satisfying reading tester
11 requirements for a driver license for public school
12 students; requiring students under eighteen to
13 complete a reading proficiency test; requiring a plan
14 of remedial reading if assessments are not
15 successfully completed; providing an option for
16 students to take alternative reading proficiency
17 tests if the initial assessment is unsuccessful;
18 allowing students to take an alternative reading test
19 for motorcycle licenses; establishing alternative
20 reading testing sites requirements; requiring school
21 districts to provide alternative documentation of
22 reading proficiency if applicable; establishing
23 alternative documentation requirements; allowing
24 students to submit reading proficiency test results
from other states; requiring the Department of
Education to approve or disapprove out-of-state test
results; creating requirement for documentation of
school enrollment, completion, or lawful excuse for
minors to obtain a driver license; requiring minors
to demonstrate reading proficiency at an eighth-grade
reading level unless excused; establishing exception
for summer months; establishing documentation
requirements for students educated by other means;
establishing misdemeanor for violations; providing
alternate route to obtain driver license for certain
employed persons under eighteen; establishing
employer fines for falsification; requiring
attendance officers to provide documentation;
requiring attendance officers to notify Service
Oklahoma of certain student withdrawals; requiring
notification of license cancellation in certain

1 circumstances; providing exceptions for notice
2 requirements; requiring school districts to provide
3 documentation of reading proficiency to certain
4 enrolled students; defining terms; providing
5 exceptions to reading proficiency requirements;
6 requiring Service Oklahoma to approve forms;
7 providing for codification; providing an effective
8 date; and declaring an emergency.

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10 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

11 SECTION 1. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 1210.515A of Title 70, unless
13 there is created a duplication in numbering, reads as follows:

14 A. Pursuant to the provisions of paragraph 2 of subsection A of
15 Section 2 of this act, any person under the age of eighteen (18)
16 years wishing to apply for a driver license or permit shall
17 successfully demonstrate a satisfactory reading ability at the
18 eighth-grade reading level by meeting the following criteria:

19 1. A student enrolled in a public school shall successfully
20 complete the reading portion of the statewide assessment
21 administered pursuant to Section 1210.508 of this title and that is
22 offered in the eighth grade. Following the administration of this
23 assessment in the eighth grade, any student not successfully
24 completing the reading portion shall be assigned a plan of remedial
25 reading. Any student not successful in completing the reading
26 portion of the state assessment may take a comparable alternative
27 reading proficiency test in order to satisfy the criteria for a

1 driver license or permit. Alternative reading proficiency tests
2 shall be approved by the State Department of Education. Subsequent
3 successful completion of an alternative reading proficiency test
4 shall serve to satisfy any retake requirement for the reading
5 portion of the state assessment in the eighth grade in the Oklahoma
6 School Testing Program. School districts shall notify, in writing,
7 each student who takes the reading portion of the state assessment
8 for the eighth grade or who takes an alternative reading proficiency
9 test and the student's parent or legal guardian of the results. If
10 the student fails to perform satisfactorily on the test, the notice
11 shall inform the student of the reading proficiency driver license
12 requirement and the school's remediation plan for the student. Upon
13 the student's successful completion of the test, the school shall
14 furnish the student with the documentation needed for the driver
15 license application in Oklahoma;

16 2. Unless alternatively documented according to the provisions
17 of subsection C of this section, students under the age of eighteen
18 (18) years shall successfully complete a reading proficiency test
19 approved by the State Department of Education; and

20 3. Any student who wishes to apply for a restricted license to
21 operate a motorcycle may take an alternative reading proficiency
22 test, subject to the provisions of this section.

23 B. Alternative reading proficiency tests shall be offered by
24 testing sites, which shall include the public schools at least four

1 times per calendar year, and may include any of the following which
2 choose to participate: the technology center school districts,
3 Regional Education Service Centers, colleges, accredited private
4 schools, and other sites approved by the State Department of
5 Education. A student may take the test as often as wished, subject
6 to the provisions of this section. Testing sites shall provide the
7 first alternative reading proficiency test for each student at no
8 cost. Students may be assessed a fee not to exceed Twenty-five
9 Dollars (\$25.00) by the testing site for each subsequent alternative
10 reading proficiency test taken.

11 C. A school district shall provide for alternative
12 documentation of reading proficiency for the purposes of paragraph 2
13 of subsection A of Section 2 of this act for any student with an
14 Individualized Education Program (IEP) that, at a minimum, is in an
15 area related to reading. The alternative documentation shall be
16 furnished to such student who is performing satisfactorily in
17 reading pursuant to the Individualized Education Program of the
18 student. Parents of disabled students educated pursuant to the
19 provisions of Section 4 of Article XIII of the Oklahoma Constitution
20 may satisfy the requirement of paragraph 2 of subsection A of
21 Section 2 of this act by signing an affidavit that, based upon their
22 best information and belief, their child would qualify for an
23 Individualized Education Program that, at a minimum, is in an area
24 related to reading if enrolled in public school, and that in their

1 judgment their child is performing satisfactorily in reading and is
2 therefore academically qualified to satisfy the requirement of
3 paragraph 2 of subsection A of Section 2 of this act.

4 D. Any person under the age of eighteen (18) who has previously
5 completed and successfully passed a reading proficiency test from
6 another state may submit the results of such test to the State
7 Department of Education for verification and approval. The State
8 Department of Education shall have thirty (30) days from receipt of
9 the reading proficiency results submitted by the person to verify
10 that the reading proficiency requirements from the other state are
11 equivalent or comparable to the reading proficiency requirements
12 established for Oklahoma students pursuant to this section. Upon
13 verification and approval by the State Department of Education, the
14 Department shall furnish the person with the documentation needed
15 for the driver license application in Oklahoma. If the reading
16 proficiency documentation submitted by the person is disapproved by
17 the Department, the person may take an alternative reading
18 proficiency test as provided for in subsection B of this section.

19 SECTION 2. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 6-107.8 of Title 47, unless
21 there is created a duplication in numbering, reads as follows:

22 A. Service Oklahoma shall deny a license, restricted license,
23 or instruction permit for the operation of a motor vehicle to any
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1 person under eighteen (18) years of age who does not, at the time of
2 application, present documentation that such person:

3 1. Is a student enrolled in a public or private secondary
4 school, including any technology center school, of this state or any
5 other state;

6 2. Has received a diploma or certificate of completion issued
7 to the person from a secondary school of this state or any other
8 state;

9 3. Is enrolled and making satisfactory progress in a program
10 leading to a certificate of high school equivalency issued by the
11 State Department of Education, or has obtained such certificate;

12 4. Is excused from such requirement pursuant to a lawful excuse
13 as defined in subsection G of this section or due to circumstances
14 beyond the control of the person; or

15 5. Is excused from such requirement pursuant to subsection C of
16 this section; and

17 6. Has successfully passed the criterion-referenced reading
18 test required for all eighth grade students or an alternative
19 reading proficiency test approved by the State Department of
20 Education, pursuant to the provisions of Section 1 of this act,
21 demonstrating reading proficiency at the eighth-grade reading level,
22 unless such student is excused from such requirement pursuant to the
23 provisions of Section 1 of this act. Provided, during the summer
24 months when school is not in regular session, as established by the

1 school district pursuant to Section 1-109 of Title 70 of the
2 Oklahoma Statutes, a person under eighteen (18) years of age may
3 satisfy the documentation requirement of this subsection by
4 providing a notarized written statement from and signed by the legal
5 custodial parent or legal guardian of the person to Service Oklahoma
6 stating that the person completed the immediately previous school
7 year and is enrolled or intends to enroll for the immediately
8 subsequent school year.

9 B. 1. A person under eighteen (18) years of age who is
10 receiving education by other means, including education at home
11 pursuant to Section 4 of Article XIII of the Oklahoma Constitution,
12 shall satisfy the documentation requirement of paragraphs 1, 2, 3,
13 4, and 5 of subsection A of this section by providing a written
14 statement from and signed by the legal custodial parent or legal
15 guardian of the person to Service Oklahoma stating that the person
16 is receiving instruction by other means pursuant to Section 4 of
17 Article XIII of the Oklahoma Constitution.

18 2. Any person who falsifies the information required in such
19 documentation, upon conviction, shall be guilty of a misdemeanor.

20 C. 1. A person under eighteen (18) years of age who does not
21 meet the requirements of paragraphs 1 through 3 of subsection A of
22 this section or the requirements of subsection B of this section may
23 retain or be issued a driver license if:
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1 a. the person is employed at least twenty-four (24) hours
2 per week, and

3 b. the employer of the person verifies the employment on
4 a form prescribed by Service Oklahoma.

5 2. Any person who has retained or been issued a driver license
6 pursuant to this subsection who leaves such employment shall have
7 fifteen (15) days from the date of termination of employment to
8 provide verification of employment from a new employer.

9 3. Any employer who falsifies a verification of employment
10 shall be subject to an administrative fine of not more than Fifty
11 Dollars (\$50.00), to be assessed by Service Oklahoma.

12 D. 1. School district attendance officers, upon request, shall
13 provide a documentation of enrollment status form, established and
14 approved by Service Oklahoma, to any person under eighteen (18)
15 years of age who is properly enrolled in a school for which the
16 attendance officer is responsible, for presentation to Service
17 Oklahoma upon application for or reinstatement of an instruction
18 permit, restricted license, or license to operate a motor vehicle.

19 2. Except as provided in subsection E of this section, whenever
20 a person over fourteen (14) years of age and under eighteen (18)
21 years of age, who has a driver license or permit issued by Service
22 Oklahoma, withdraws from school, the attendance officer shall notify
23 Service Oklahoma of such withdrawal through a documentation of
24 enrollment status form.

1 3. Within fifteen (15) working days of the receipt of such
2 notice, Service Oklahoma shall provide written notice to the person,
3 by first class, postage prepaid mail, that the driver license of the
4 person will be canceled thirty (30) days following the date the
5 notice to the person was sent, unless documentation of compliance
6 with the provisions of this section is received by Service Oklahoma
7 before such time. After the thirty-day period, Service Oklahoma
8 shall cancel the driving privileges of the person.

9 E. When the withdrawal from school of a person under eighteen
10 (18) years of age is:

11 1. Due to circumstances beyond the control of the person;

12 2. Pursuant to any lawful excuse; or

13 3. For the purpose of transfer to another school, including
14 education at home pursuant to Section 4 of Article XIII of the
15 Oklahoma Constitution, as confirmed in writing by the legal
16 custodial parent or legal guardian of the person,
17 no notice as required by subsection D of this section shall be sent
18 to Service Oklahoma, or, if sent, such notice shall be disregarded
19 by Service Oklahoma. If the person is applying for a driver
20 license, restricted driver license, or instruction permit, the
21 attendance officer shall provide the person with documentation to
22 present to Service Oklahoma to excuse the person from the
23 requirements of this section.

1 F. Every school district shall, upon request, provide
2 documentation of reading proficiency for any person under eighteen
3 (18) years of age enrolled in such school district by certifying
4 passage of a reading examination pursuant to the provisions of
5 Section 1 of this act.

6 G. As used in this section:

7 1. "Withdrawal" means more than ten (10) consecutive days, or
8 parts of days, of unexcused absences or fifteen (15) days, or parts
9 of days, total unexcused absences during a single semester;

10 2. "Lawful excuse" means absence from school pursuant to any
11 valid physical or mental illness or pursuant to any legal excuse as
12 provided in Section 10-105 of Title 70 of the Oklahoma Statutes;
13 provided, however, the meaning of such term shall not include
14 marriage;

15 3. "Circumstances beyond the control of the person" shall not
16 include marriage, suspension, or expulsion from school, or
17 imprisonment in a jail, penitentiary, or other correctional
18 institution;

19 4. "Documentation of enrollment status form" means the document
20 established and approved by Service Oklahoma to substantiate
21 information concerning the eligibility of a person under eighteen
22 (18) years of age to apply for or to retain a license or permit to
23 drive. Such documentation shall not include any information which
24 is considered an education record pursuant to the Family Education

1 Rights and Privacy Act, 20 U.S.C., Sections 1232g through 1232i,
2 unless compliance is made with the restrictions regarding disclosure
3 of the information; and

4 5. "Documentation of reading proficiency" means information
5 provided by a school authorized by subsection B of Section 1 of this
6 act to certify the eligibility of a person under eighteen (18) years
7 of age to apply for a license or permit based on passage of a
8 reading proficiency test approved by the State Department of
9 Education, or pursuant to the alternative documentation criteria
10 provided in subsection C of Section 1 of this act. Such
11 documentation shall not include any information which is considered
12 an education record pursuant to the Family Education Rights and
13 Privacy Act, 20 U.S.C., Sections 1232g through 1232i, unless
14 compliance is made with the restrictions regarding disclosure of the
15 information.

16 H. The provisions of this section shall be inapplicable with
17 respect to any person under eighteen (18) years of age upon whom
18 rights of majority have been conferred pursuant to Sections 91
19 through 94 of Title 10 of the Oklahoma Statutes.

20 I. Service Oklahoma shall establish and approve documentation
21 forms and certificates required by this section for use by school
22 districts to comply with the provisions of this section. Upon
23 establishment and approval of such forms and certificates, Service
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1 Oklahoma shall notify each school district and the State Board of
2 Education of the content thereof.

3 SECTION 3. This act shall become effective July 1, 2026.

4 SECTION 4. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

8 Passed the House of Representatives the 24th day of March, 2026.

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Presiding Officer of the House
of Representatives

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13 Passed the Senate the _____ day of _____, 2026.

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Presiding Officer of the Senate

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